

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1579

By: Paxton of the Senate

and

Hilbert and **Fugate** of the
House

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9 An Act relating to ad valorem tax; amending 68 O.S.
10 2021, Section 2876, as last amended by Section 1,
11 Chapter 105, O.S.L. 2025 (68 O.S. Supp. 2025, Section
12 2876), which relates to notice of increase of
13 property valuation and protest; requiring certain
14 notice of valuation increase to include taxpayer bill
15 of rights; prescribing language to be included in
16 taxpayer bill of rights; and providing an effective
17 date.

18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. AMENDATORY 68 O.S. 2021, Section 2876, as
20 last amended by Section 1, Chapter 105, O.S.L. 2025 (68 O.S. Supp.
21 2025, Section 2876), is amended to read as follows:

22 Section 2876. A. If the county assessor increases the
23 valuation of any personal property above that returned by the
24 taxpayer, or in the case of real property increases the fair cash
25 value or the taxable fair cash value from the preceding year, or
26 pursuant to the requirements of law if the assessor has added

1 property not listed by the taxpayer, the county assessor shall
2 notify the taxpayer in writing of the amount of such valuation as
3 increased or valuation of property so added. Provided, if the
4 county assessor determines that a mailing to property owners exempt
5 from payment of ad valorem tax pursuant to Sections 8E and 8F of
6 Article X of the Oklahoma Constitution would create an undue burden,
7 then the county assessor may suspend notifications to those property
8 owners.

9 B. For cases in which the taxable fair cash value or fair cash
10 value of real property has increased, the notice shall include the
11 fair cash value of the property for the current year, the taxable
12 fair cash value for the preceding and current year, the assessed
13 value for the preceding and current year ~~and~~, the assessment
14 percentage for the preceding and current year, and the taxpayer bill
15 of rights as provided in subsection I of this section. For cases in
16 which the real property is a homestead, as defined in Section 2888
17 of this title, the notice shall include information on the
18 application for a limit on the fair cash value of a homestead
19 property as provided for in Section 8C of Article X of the Oklahoma
20 Constitution.

21 C. For cases in which the county assessor increases the
22 valuation of any personal property above that returned by the
23 taxpayer, the notice shall describe the property with sufficient
24 accuracy to notify the taxpayer as to the property included, the

1 fair cash value for the current year, the assessment percentage for
2 the current year, any penalty for the current year pursuant to
3 subsection C of Section 2836 of this title, and the assessed value
4 for the current year.

5 D. The notice shall be mailed to the taxpayer at the taxpayer's
6 last-known address and shall clearly be marked with the mailing
7 date. The assessor shall have the capability to duplicate the
8 notice, showing the date of mailing. Such record shall be prima
9 facie evidence as to the fact of notice having been given as
10 required by this section.

11 E. The taxpayer shall have thirty (30) calendar days from the
12 date the notice was mailed in which to file a written protest with
13 the county assessor specifying objections to the increase in fair
14 cash value or taxable fair cash value by the county assessor;
15 provided, in the case of a scrivener's error or other admitted error
16 on the part of the county assessor, the assessor may make
17 corrections to a valuation at any time, notwithstanding the thirty-
18 day period specified in this subsection. The protest shall set out
19 the pertinent facts in relation to the matter contained in the
20 notice in ordinary and concise language and in such manner as to
21 enable a person of common understanding to know what is intended.
22 The protest shall be made upon a form prescribed by the Oklahoma Tax
23 Commission.

1 F. A taxpayer may file a protest if the valuation of property
2 has not increased or decreased from the previous year if the protest
3 is filed on or before the first Monday in April. Such protest shall
4 be made upon a form prescribed by the Oklahoma Tax Commission.

5 G. At the time of filing a protest pursuant to subsections E
6 and F of this section, the taxpayer shall also file the form
7 provided for in Section 2835 of this title. If the taxpayer fails
8 to file the required form, a presumption shall exist in favor of the
9 correctness of the county assessor's valuation in any appeal of the
10 county assessor's valuation.

11 H. The county assessor shall schedule an informal hearing with
12 the taxpayer to hear the protest as to the disputed valuation or
13 addition of omitted property. The informal hearing may be held in
14 person or may be held telephonically, if requested by the taxpayer.
15 A taxpayer that is unable to participate in a scheduled informal
16 hearing, either in person or telephonically, shall be given at least
17 two additional opportunities to participate on one of two
18 alternative dates provided by the county assessor, each on a
19 different day of the week, before the county assessor or an
20 authorized representative of the county assessor. The assessor
21 shall issue a written decision in the matter disputed within seven
22 (7) calendar days of the date of the informal hearing and shall
23 provide by regular or electronic mail a copy of the decision to the
24 taxpayer. The decision shall clearly be marked with the date it was

1 mailed. Within fifteen (15) calendar days of the date the decision
2 is mailed, the taxpayer may file an appeal with the county board of
3 equalization. The appeal shall be made upon a form prescribed by
4 the Oklahoma Tax Commission. One copy of the form shall be mailed
5 or delivered to the county assessor and one copy shall be mailed or
6 delivered to the county board of equalization. On receipt of the
7 notice of an appeal to the county board of equalization by the
8 taxpayer, the county assessor shall provide the county board of
9 equalization with all information submitted by the taxpayer, data
10 supporting the disputed valuation, and a written explanation of the
11 results of the informal hearing.

12 I. The taxpayer bill of rights to be included on the written
13 notification required pursuant to subsection A of this section shall
14 include the words "As an Oklahoma Taxpayer:" as well as the
15 following list of taxpayer rights:

16 1. You have the right to equal and uniform taxation;

17 2. You have the right to ensure that your property is appraised
18 uniformly with similar property in this state;

19 3. You have the right to have your property appraised according
20 to the rules and standards set pursuant to state law and the
21 Oklahoma Constitution for the purpose of providing for the equitable
22 use valuation of property in this state;

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1 4. You have the right to receive exemptions provided pursuant
2 to the Oklahoma Constitution or other tax relief for which you
3 qualify and apply for in a timely manner;

4 5. You have the right to be provided notice of property value
5 increases, which shall include the fair cash value of the property
6 for the current year, the taxable fair cash value for the preceding
7 and current year, the assessed value for the preceding and current
8 year, and the assessment percentage for the preceding and current
9 year;

10 6. You have the right to examine the budgets and levies on file
11 with your county clerk and the State Auditor and Inspector;

12 7. You have the right to request lists of properties and their
13 descriptions and valuations from your county assessor;

14 8. You have the right to file a protest against the valuation
15 of your property and request an informal hearing to dispute the
16 valuation;

17 9. You have the right to appeal to the county board of
18 equalization a decision made pursuant to a requested informal
19 hearing and be granted a hearing with such board;

20 10. Upon a decision made pursuant to the hearing with the
21 county board of equalization, you have the right to appeal such
22 decision to the district court and, subsequently, to the Oklahoma
23 Supreme Court; and

1 11. You have the right to petition certain local taxing
2 jurisdictions for the repeal or reduction of certain property tax
3 levies.

4 SECTION 2. This act shall become effective November 1, 2026.

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6 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS AND BUDGET, dated
7 04/08/2026 - DO PASS, As Coauthored.
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